

25SMCV03232 25SMCV03232

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C07%2F21%2F2026

Source SHA-256: 2541a0311fbb723240cdcaa11b51dc1d0e6cf2e23b750cdea717b29d93588ef7

Case Number: 25SMCV03232 Hearing Date: July 21, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

December

10, 2025, continued to July 21, 2026

CASE NUMBER

25SMCV03232

MOTION

Motion

to Quash Service of Summons

MOVING PARTY

Defendant

James McMurtry

OPPOSING PARTY

Plaintiff

United Talent Agency, LLC

MOTION

This case arises from a business dispute concerning talent agency commissions.

On June 23, 2025, Plaintiff United Talent Agency, LLC ("Plaintiff") brought suit against Defendant James McMurtry, (1) individually; (2) as executor of the Estate of Larry J. McMurtry; (3) as trustee of the Larry J. McMurtry Revocable Trust; and (4) as trustee of the James McMurtry Descendant's Trust ("Defendant").

Defendant now moves to quash service of the summons and complaint on the grounds that California lacks personal jurisdiction over him. In the alternative, Defendant moves to dismiss the action for forum non conveniens. Plaintiff opposes the motion and Defendant replies.

The Court continued the hearing to allow for limited jurisdictional discovery. Plaintiff filed a supplemental opposition and McMurtry filed a supplemental reply.

LEGAL STANDARDS

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).)

"[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that 'minimum contacts' exist between the defendant and the forum state to justify imposition of personal jurisdiction." (Mihlon v. Superior Court (1985) 169 Cal.App.3d 703, 710.) It is thus upon the plaintiff to demonstrate by a preponderance of the evidence that all jurisdictional criteria are met. (Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232.)

Moreover, “on a challenge to personal jurisdiction by a motion to quash, the plaintiff has the burden of proving, by a preponderance of the evidence, the factual bases justifying the exercise of jurisdiction.” (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 209–210 (hereafter *ViaView*)). “The plaintiff must come forward with affidavits and other competent evidence to carry this burden and cannot simply rely on allegations in an unverified complaint.” (*Id.* at p. 210.) If plaintiff meets this burden, “it becomes the defendant’s burden to demonstrate that the existence of jurisdiction would be unreasonable.” (*Buchanan v. Soto* (2015) 241 Cal.App.4th 1353, 1362.)

California’s long-arm statute grants its courts the power to assert personal jurisdiction over out-of-state parties to the maximum extent that the state and federal constitutions allow. (Code Civ. Proc., § 410.10.) Under the due process clause of the Fourteenth Amendment to the United States Constitution, state courts may exercise personal jurisdiction over nonresidents who have “minimum contacts” with the forum state. (*International Shoe Co. v. Washington* (1945) 326 U.S. 310, 316.) Minimum contacts exist when the relationship between the nonresident and the forum state is such that the exercise of jurisdiction does not offend “traditional notions of fair play and substantial justice.” (*Id.* at p. 316.) The primary focus of the personal jurisdiction inquiry is the relationship of the defendant to the forum state. (*Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County* (2017) 582 U.S. 255 (hereafter *Bristol-Myers*)).

“Minimum contacts exist where the defendant’s conduct in the forum state is such that he should reasonably anticipate being subject to suit there, and it is reasonable and fair to force him to do so.” (*F. Hoffman-La Roche, Ltd. v. Superior Court* (2005) 130 Cal.App.4th 782, 795, citing *World-Wide Volkswagen Corp. v. Woodson* (1980) 444 U.S. 286, 297; *Kulko v. California Superior Court* (1978) 436 U.S. 84, 92; *Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 269.)

Personal jurisdiction may be either general or specific. General (also called all-purpose) jurisdiction means that a defendant’s contacts with a state are sufficiently extensive that the “defendant is ‘essentially at home,’ ” and the court may exercise jurisdiction over the defendant regardless of whether the claims relate to the forum state. (*Ford Motor Company v. Montana Eighth Judicial District Court* (2021) 141 S.Ct. 1017, 1024; *Goodyear Dunlop Tires Operations, S. A. v. Brown* (2011) 564 U.S. 915, 919.)

Specific personal jurisdiction hinges on the “ ‘relationship among the defendant, the forum, and the litigation.’ ” (Daimler AG v. Bauman (2014) 571 U.S.117, 133; accord Walden v. Fiore (2014) 571 U.S. 277, 284.) Such jurisdiction requires “ ‘an affiliation between the forum and the underlying controversy, principally, [an] activity or an occurrence that takes place in the forum State and is therefore subject to the State’s regulation.’ ” (Bristol-Myers, supra, 582 U.S. at p. 262.) Consistent with the constraints of due process, “the defendant’s suit-related conduct must create a substantial connection with the forum State.” (Walden v. Fiore, supra, 571 U.S. at p. 284.)

Further, “a nonresident defendant may be subject to the court’s specific jurisdiction if three requirements are met: (1) the defendant has purposefully availed itself of forum benefits with respect to the matter in controversy; (2) the controversy is related to or arises out of the defendant’s contacts with the forum; and (3) the exercise of jurisdiction would be reasonable and comports with fair play and substantial justice.” (ViaView, supra, 1 Cal.App.5th at p. 216.)

REQUEST FOR JUDICIAL NOTICE

In supplemental reply, Defendant
requests judicial notice of the following:

.

Ex. A: Certificate of Good Standing for Teton
Ridge Entertainment, LLC

.

Ex. B: Halcyon Complaint

Courts may take judicial notice of
official acts of the legislative, executive, and judicial branches of the
United States and of any state of the United States. (Evid. Code, § 452, subd. (c).) Courts may also take judicial notice of
records of any court of any state of the United States. (Evid. Code, § 452, subd. (d)(2).)

However, “while courts are free to take judicial notice of the existence
of each document in a court file, including the truth of results reached, they
may not take judicial notice of the truth of hearsay statements in decisions
and court files. Courts may not take

judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Therefore, the Court takes judicial notice of the existence, filing, and legal consequences of Exhibits A and B, but not the absolute truth of the allegations or other hearsay statements contained therein.

ANALYSIS

Plaintiff alleges it represented Defendant’s father out of its offices in Beverly Hills from 2005 until Defendant’s father’s death in March 2021. (Complaint ¶¶ 7-8.) Pursuant to their agreement, Defendant’s father would pay Plaintiff a 10% commission on all projects Plaintiff negotiated for Defendant’s father. (Complaint ¶ 9.) Upon Defendant’s father’s death, the rights transferred to the Estate, the Trusts and Defendant. (Complaint ¶ 12.) In 2023, Defendant advised that Plaintiff did not represent Defendant, the Estate, or the Trusts in any way, and refused to pay commissions to Plaintiff in connection with a deal that closed in 2025, which Plaintiff alleges it negotiated on Defendant’s behalf. (Complaint ¶¶ 15-16.)

Defendant argues California lacks general or specific personal jurisdiction over him because (1) he is a resident of Texas, who administers both trusts under Texas law and the estate under Texas probate court jurisdiction; (2) Plaintiff served Defendant in Texas with the summons and complaint; (3) Defendant has not generally appeared or consented to jurisdiction in California; and (4) Defendant lacks “minimum contacts” with California because he has not purposefully availed himself of the benefits and laws of California or purposefully directed his activities at California. Instead, Defendant urges that Texas is a more suitable forum.

In opposition, Plaintiff argues that in February 2018, Defendant signed a Hollywood Exploitation Rights agreement granting his father’s longtime collaborator Diana Ossana the right to engage and pay agents to represent the estate upon his father’s death. (Ex. A to Khayatian Decl.) Further, on June 8,

2021, Defendant sent an email to an intellectual property appraiser for his father's estate introducing Keya Khayatian and Abby Glusker of Plaintiff's firm as "FILM AGENT" and "TELEVISION AGENT," respectively. Further, Plaintiff argues that the negotiation work it did on Defendant's behalf in 2021 and 2022 resulted in the deal closing in 2025. (Khayatian Decl. ¶ 12 and Ex. C.)

The Court does not find Defendant's conduct rises to the level of purposeful availment. Specifically, the parties to the Hollywood Exploitation Rights Agreement ("HEA") are Defendant, his father, and Ossana, but not Plaintiff. Defendant's father and Ossana both signed and notarized the agreement in Arizona, and Defendant signed and notarized the agreement in his individual capacity from Texas. Plaintiff was not a party to that agreement, nor does that agreement mention California. Further, Plaintiff does not appear to be exercising its rights against Defendant pursuant to any claim arising from that agreement. As such, the Court does not find the agreement material to whether California has personal jurisdiction over Defendant.

Additionally, the Court does not find the mere introductions of Khayatian and Glusker as "FILM AGENT" and "TELEVISION AGENT" to the intellectual property appraiser for Defendant's father's estate shortly after the death constitute any purposeful availment of their continued services on behalf of the Estate. Plaintiff does not contend that it continued its services for the estate because of any representations made in that introductory email such that the email could be construed as Defendant's purposeful availment of Plaintiff's continued services in California. Thus, at best, Plaintiff's continued work on behalf of the estate constitutes action Plaintiff undertook in this forum, but not evidence of any action Defendant undertook in or directed at the forum for jurisdictional purposes.

Finally, Plaintiff initially argued that Defendant sometimes travels to California to perform music for audiences in the forum. But again, Defendant's music performances in California do not relate to the instant dispute regarding Plaintiff's representation services on behalf of his father's estate, nor does Plaintiff appear to argue that these trips are so systematic and continuous as to make Defendant effectively "at home" in California.

Following limited jurisdictional discovery, Plaintiff filed a

supplemental opposition, outlining the substantial connections Defendant's father and Ossana had working and contracting with California agents and attorneys prior to his death. After the death of his father, Defendant signed the HEA, which gave Ossana the authority to engage entertainment representatives in California for the benefit of the estate. But any agreements Ossana made with California agents, attorneys, or other representatives would be just that...agreements between Ossana and those California agents. There is no purposeful availment by Defendant of California's jurisdiction.

Plaintiff also argues that Defendant attended a May 18, 2021 Zoom call with Ossana, Defendant, UTA, and the California team after which Defendant told Ossana, "I really liked Keya [Khayatian], he was very—he seemed smart and with it."

Defendant also participated in another call in September 2021, and in October 2021 Defendant agreed with her strategy for the TRE opportunity. Plaintiff also characterizes Ossana's testimony about the California team's work as being "ratified" by Defendant, but the passage actually indicates that Defendant was not involved in the day-to-day management of the entertainment portion of the estate—Ossana was, and she did not "have to reaffirm" his ratification "every time."

Plaintiff also argues that Defendant engaged another agent, attorney Craig Barker, to coordinate with the California team on his behalf, who received updates on the TRE and never instructed Ossana to stop working with UTA.

But again, the actions Barker took would be between Barker and the California team. "[A]ctivities that are undertaken on behalf of a defendant may be attributed to that defendant for purposes of personal jurisdiction if the defendant purposefully directed those activities toward the forum state." (*Anglo Irish Bank Corp., PLC v. Superior Court* (2008) 165 Cal.App.4th 969, 981, 983-984, emphasis added.) Here, there is no evidence that Defendant directed any activities in or toward the forum state. Rather, he allowed Ossana to continue to manage the entertainment portion of the estate without much personal involvement or interference, and later hired Barker to receive the updates.

Plaintiff also cites to *Gilmore Bank v. AsiaTrust New Zealand Ltd.* (2014) 223 Cal.App.4th 1558, 1572. But

there, the out-of-state defendant sent promotional materials to a California resident, negotiated contractual terms with California residence, sent invoices to California, and wired funds to California.

The out-of-state defendant “received compensation for accepting, investing, managing, disbursing, and shielding the assets of [...] a California judgment debtor in a scheme that contemplates an ongoing contractual relationship for [the California resident’s] lifetime.” (Ibid.) The appellate court further noted: “ ‘While any single telephone call or piece

of correspondence might not be enough to satisfy the ‘minimum contacts’ requirement, there is much more in this case. Here there was a veritable ‘lattice-work’ of contacts linking [AsiaTrust] and the State of California: not one but many calls and other communications to California during the negotiations. The execution in California of the legal documents which formed the arrangement.... A continuing stream of payments from [AsiaTrust] to California.’ A continuing receipt by AsiaTrust of compensation from the California trustee of a California trust. AsiaTrust’s acceptance from the California trust of money which AsiaTrust invested as directed by the California trustee and a California lawyer.”

(Id. at p. 1573, citation omitted.)

By contrast, here, Defendant’s contacts amount to one or two phone calls, with virtually no involvement in the day-to-day management of the entertainment side of his father’s estate.

CONCLUSION AND ORDER

The Court cannot determine on the facts presented that Defendant has or had the “minimum contacts” with California. Therefore, finding Defendant lacks the requisite contacts with California, the Court grants Defendant’s motion to quash service of the summons and complaint for lack of personal jurisdiction, and orders such service quashed.

The Clerk of the Court shall provide notice of the Court’s ruling.

DATED: July 21, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court